GOVERNOR UNDER SCRUTINY

By Amarnath K. Menon

The DMK government's long tug of war with Tamil Nadu governor R.N. Ravi over his protracted inaction on 12 bills is reaching a climax. The Supreme Court has asked hard questions on the path taken by the governor. On February 7, it wondered if the governor could simply sit on bills on the presumption that they were "repugnant to the Constitution" (under Article 254, a proposed state law is 'repugnant' if it is found inconsistent with/encroaching into a central law).

The aforementioned 12 bills, mostly dealing with the appointments of vice-chancellors in state universities, were sent to Ravi for his consent between January 2020 and April 2023. With no sign of movement, the state finally approached the SC in November 2023. Ravi had then speedily referred two of the bills to the President and withheld consent on the remaining 10. Under Article 200, when presented with bills, a state governor can either give assent, withhold it or refer the bills to the President for consideration. Under the first proviso of the Article, if assent is withheld, a governor must return the bill to the House with a 'message' to reconsider it or suggest amendments. Crucially, if the assembly sends the bill back to the governor, the latter's office cannot withhold it again, and has to grant consent.

And that's what the TN assembly did—within days, it passed the 10 withheld bills all over again in a special session and returned them to the governor. Cornered, Ravi referred all 10 bills to the President, who assented to one, rejected seven and did not consider two.

Former attorney general Mukul Rohatgi, now representing Tamil Nadu, told the SC that the state has acted in accordance with the first proviso of Article 200 and expected the governor to approve the bills; he further argued that the bills could only have been forwarded to the President in case of perceived 'repugnancy' under Article 254. Representing the governor, attorney general R. Venkataramani argued that all the bills had been "addressed", and that none were pending approval now.

The bench of Justices J.B. Pardiwala and R. Mahadevan , though, were unconvinced: "If repugnancy is something that troubled the governor, he should have immediately brought it to the notice of the government and the assembly could have reconsidered the bills." The court observed that Ravi's actions were tantamount to frustrating the provisions of Article 200 of the Constitution.

In its writ petition filed under Article 32 before the Supreme Court, the Tamil Nadu government claimed that the governor has positioned himself as a "political rival". Its contention is that withholding assent indefinitely undermines legislative authority. In its argument, Tamil Nadu is relying on the case of the state of Punjab vs principal secretary to the governor of Punjab (2023), in which the SC stated that the Constitution does not provide for a perpetual gubernatorial veto on bills.

According to experts, though the Constitution mandates that governors shall work only under the "aid and advice of the council of ministers", using the office to needle Opposition-ruled states is a practice that goes way back.



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PARALLEL TRACKS Tamil Nadu CM M.K. Stalin with governor R.N. Ravi at the R-Day celebrations, Jan. 26

"IF THE GOVERNOR IS PRIMA FACIE OF THE VIEW THAT BILLS SUFFER FROM REPUGNANCY, SHOULD (HE) NOT BRING IT TO THE NOTICE OF THE STATE GOVERNMENT?"

SC bench, while hearing Tamil Nadu government's petition on bills stuck with the governor